

BUCHANAN VS. DURLER, III

CASE NUMBER: 25CV-0208923

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 7, 2026 to Plaintiff Sara Buchanan, in pro per, for failure to timely serve. Proof of Service of Summons was filed on August 3, 2026. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status responsive pleading or default. Plaintiff is reminded of the timeframes set forth in CRC 3.110.

CAVNAR VS. MODOC COUNTY

CASE NUMBER: 25CV-0209042

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 22, 2026 to Plaintiff Christopher Cavnar, in pro per, for failure to file a proper Proof of Service of Summons. The Complaint in this matter was filed on October 27, 2025. “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). Plaintiff filed a Proof of Service of Summons on December 5, 2025, however, the Proof of Service of Summons does not reflect valid service on any Defendant. Plaintiff did not file a written response to the Order to Show Cause. With no sufficient excuse for failure to timely serve, sanctions are imposed against Plaintiff in the amount of \$250. The clerk is directed to prepare the Order of Sanctions. **An appearance by Plaintiff is necessary on today’s calendar to explain the delay.**

CHANCE, ET AL. VS. STEALTH AUTO RECOVERY

CASE NUMBER: 25CV-0208848

Tentative Ruling on Motions to be Relieved as Counsel: Neama Rahmani from West Coast Trial Lawyers APLC moves to be relieved as counsel for Plaintiffs Douglas Chance and Saundra Martinez. A motion was filed for each Plaintiff.

CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d). There are proofs of service on file reflecting timely service by mail on Plaintiffs as well as Defendants’ counsel who was served electronically. Counsel was unable to confirm the address used to serve Plaintiffs. However, it appears that counsel has taken reasonable steps to confirm the address.

As to the merits, a declaration must be filed that states in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1). Plaintiff’s counsel has provided evidence that there is a breakdown in the attorney-client relationship that prevents continued representation.

The motions are **GRANTED**. The matter will be on calendar on **Monday, November 2, 2026 at 9:00 a.m. in Department 63** for status of counsel. Counsel provided proposed Orders that will be modified by the Court to include the future hearing date. Neama Rahmani from West Coast Trial Lawyers APLC will be relieved upon the filing of the Notices of Entry of Order. Plaintiffs’ counsel is ordered to provide notice to Defendants.

DIVIS VS. SHASTA AREA SAFETY COMMUNICATIONS AGENCY, ET AL.

CASE NUMBER: 26CV-0210924

Tentative Ruling on Demurrer: Defendants Shasta Area Safety Communications Agency aka Shascom-911 (“Shascom”) and Jessica Larmour demur to the Fifth Cause of Action alleged in the Complaint filed by Plaintiff James Divis. Plaintiff opposes the Demurrer.